Nigerian Cybersecurity Laws

An overview of the legal and regulatory framework • August 2026

Nigeria does not have a single, unified “cybersecurity law.” Instead, its framework is a cluster of statutes, sector regulations, and national policies that together govern cybercrime, data protection, and the security of information systems. The principal instruments are set out below.

1. Cybercrimes (Prohibition, Prevention, etc.) Act 2015, as amended in 2024

This is the core cybersecurity statute. It criminalises unauthorised access to computer systems, system and data interference, cyberstalking, identity theft, cyber-terrorism, child pornography, computer-related fraud, and related offences. It provides for the designation of “critical national information infrastructure” and requires service providers to retain traffic and subscriber data and to cooperate with law enforcement agencies.

The Cybercrimes (Amendment) Act 2024 made several notable changes. It narrowed the controversial cyberstalking provision (section 24) to messages that are pornographic or that threaten death, violence, or bodily harm — addressing long-standing criticism that the section was used against journalists and critics. It also introduced a cybersecurity levy of 0.5% on certain electronic transactions, to be collected by financial institutions into the National Cybersecurity Fund administered by the Office of the National Security Adviser; implementation of the levy was suspended following public backlash. The amendment further refined the Cybercrime Advisory Council structure, and additional reform proposals have been under discussion since.

2. Nigeria Data Protection Act 2023 (NDPA)

The NDPA is Nigeria's principal data-privacy law, replacing the earlier Nigeria Data Protection Regulation (NDPR) 2019. It established the Nigeria Data Protection Commission (NDPC) and imposes obligations on data controllers and processors covering lawful basis for processing, data security, breach notification, and the appointment of data protection officers. Sanctions are significant: fines of up to 2% of annual gross revenue or NGN 10 million (whichever is greater) for major data controllers. In 2025 the NDPC issued the General Application and Implementation Directive (GAID) to operationalise the Act.

3. Sector Regulators and Secondary Instruments

Several regulators impose cybersecurity obligations within their sectors. The Central Bank of Nigeria (CBN) has issued risk-based cybersecurity frameworks for banks, other financial institutions, and payment service providers. The Nigerian Communications Commission (NCC) issues guidelines for telecommunications operators, including SIM registration and lawful-interception rules. The Securities and Exchange Commission (SEC) has guidelines for capital-market operators. Under the NITDA Act 2007, the National Information Technology Development Agency sets information technology standards; a proposed NITDA repeal-and-re-enactment bill has been pending before the National Assembly.

4. Policy Layer

The National Cybersecurity Policy and Strategy (2021) provides the overarching policy direction, coordinated by the Office of the National Security Adviser (ONSA), which also houses the national Computer Emergency Response Team (ngCERT).

5. Related Statutes

Other laws frequently cited alongside the cybersecurity framework include the Evidence Act 2011 (admissibility of electronic evidence), the Money Laundering (Prevention and Prohibition) Act 2022, the Terrorism (Prevention and Prohibition) Act 2022, and the Advance Fee Fraud and Other Fraud Related Offences Act 2006.

Disclaimer: This document is an informational orientation, not legal advice. Businesses assessing compliance obligations in Nigeria should consult qualified Nigerian counsel to confirm which statutes and sector rules apply to their specific circumstances.

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